
Sorry, Trump And Stephen Miller: Supreme Court Says Even Brown-Skinned Babies American If They're Born Here!

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Thing that thinks it's genetically superior

Yesterday when we were on the [Tavis Smiley radio program](#), he said he had talked to absolutely no one who actually thought the Supreme Court was going to go along with Stephen Miller's and Donald Trump's pathetic racist attempt to eliminate the constitutional guarantee of birthright citizenship. Likewise, we have personally encountered nobody who thought that even this illegitimate partisan hack Supreme Court would buy the Nazis' made-up argument that the provision was only and always intended for the children of slaves and no one else. At least not a majority of them.

But still, with *this* illegitimate partisan hack Supreme Court? You want to see the words on the page before you feel reassured in any kind of way, regardless of how poorly things go for the Nazis [on the day of oral arguments](#).

In the case of birthright citizenship, AKA [Trump v. Barbara](#), we now have our answer. In a ruling written by Chief Justice John Roberts, the Court voted 6-3 to tell Donald Trump to eat their collective ass. The dissenters, predictably, are the two old fascist white supremacist xenophobes Samuel Alito and Clarence Thomas, plus Neil Gorsuch, who joined Thomas's dissent. Voting with the majority were Trump's other justices Brett Kavanaugh (who actually dissented in part, hold that thought) and Amy Coney Barrett, plus the chief and the liberals obviously.

Boy, if you thought the vitriol directed at Barrett after [yesterday](#) was nasty.

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The case was about Trump's birthright citizenship executive order, one of the turds from Stephen Miller's Nazi toilet bowl the president scooped up in his mouth on the first day of his second term. The question was whether this would violate the (very plain language of the) 14th Amendment, and also the federal [law](#) that enshrines and codifies it. It's not real complicated stuff.

But hey, Stupid Hitler stayed out of prison and instead got into office again, so it's worth a shot! It's fairly clear that their strategy of trying absolutely everything has paid them dividends, and that the project to rebuild the United States after its MAGA destruction will take multiple generations.

But on this issue ... nope. Sorry, suck assholes in hell with the other Nazis, Stephen Miller, Donald Trump and all the rest of you.

Roberts wrote that no matter whether a child's parents are in the United States legally, those children are "born in the United States" and "subject to the jurisdiction thereof." In other words, "Under the Constitution, they are citizens at birth."

The fascists didn't agree with that, despite how it is some of the plainest, least confusing language in the whole Constitution. (And by the way, that's the part Brett Kavanaugh didn't agree with. It's just that he agreed that Trump's EO violated the *federal law* that enshrined and codified that constitutional provision. Congress could overturn that law — wouldn't Kavanaugh just *love* that? — but they haven't.)

"Citizenship, then and now," Roberts wrote as he wrapped up the opinion of the Court, "was the right to have rights — to freely participate in our political community. The Framers of the Fourteenth Amendment extended that promise to 'every free-born person in this land.' We keep that promise today."

Justice Ketanji Brown Jackson wrote her own concurring opinion, for the sole purpose of reading Clarence Thomas and his dissent for filth. You love to see it. She begins:

I join the Court's opinion in full. I write separately to respond to some of the themes in the principal dissent. Despite his longstanding endorsement of a "colorblind" Constitution, JUSTICE THOMAS now surprisingly suggests that the Citizenship Clause was a race-conscious remedial measure, relating only to "freed slaves such as Dred Scott," post, at 56, and those who shared with them certain characteristics, post, at 1 ("no other homeland"); post, at 21 ("called America home"). It is for this reason, he says, that "children who were born in the United States but [to parents] not domiciled here" are not entitled to claim birthright citizenship. Post, at 3–4. But that narrow vision of the Fourteenth Amendment bears little relationship to the history of its ratification. Even worse, JUSTICE THOMAS's telling elides the entire point of the Second Founding: The Reconstruction Amendments were an anticaste, antisubordination reset for the Nation, not a mere spot treatment for the dark stain of slavery.

Enjoy Jackson's full berating of Clarence Thomas if you'd like! We'd recommend you read

Thomas's dissent for yourself, but we didn't, because there was a pube on it. (Same with Alito's dissent, except we didn't read that one because it was covered with [his wife Martha-Ann's cheap Hobby Lobby seasonal flags.](#))



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